

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 29975 of 2022

Most. Amena Begum

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Motiur Rahaman, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 02.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Sessions Case No. 4231 of 2020 arising out of Joydebpur Police Station Case No. 24 dated 03.09.2018 under Sections 302/201/34 of the Penal Code, 1860, now pending in the Court of learned Additional Sessions Judge, 1st Court, Gazipur and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that in this case under Section 302/201/34 of the Penal Code petitioner is the sole accused. It has been alleged that she committed murder of her 09(nine) months old baby girl Majia by strangulation on 03.09.2018.

Mr. Md. Motiur Rahaman, learned Advocate for the petitioner submits that the petitioner is a woman and she is in custody in connection of this case for more than 05(five) years but the prosecution could not examine a single witness during above long period of time. The petitioner is a poor illiterate woman and the confession she made was neither voluntary nor true.

Ms. Farhana Afroze Runa, learned Assistant Attorney General submits that the petitioner has murdered her baby girl and the same is a pre-plan cool blooded murder. The petitioner has made a confession under Section 164 of the Code of Criminal Procedure before a Judicial Magistrate confessing above guilt, as such, her petition for bail cannot be considered at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The petitioner is a poor and illiterate woman. She was allegedly induced by her lover to commit murder of her baby girl. The petitioner is in custody in connection of the case for more than 05(five) years but till date not a single prosecution witness has been examined. As such there is no certainty when the trial of the case has been concluded.

On consideration of the material on record, we are inclined to grant bail of the petitioner.

On consideration of above materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Most. Amena Begum, daughter of Md. Mostafa Kamal be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Additional Sessions Judge, 1st Court, Gazipur.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if she misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.